

25PSCV03636 25PSCV03636

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Case Number: 25PSCV03636 Hearing Date: August 21, 2026 Dept: H

ODK Capital LLC

v. Teach Hair Inc., et al.,

Case No. 25PSCV03636

ORDER ON (1) MOTION TO SET ASIDE

ENTRY OF DEFAULT AND (2) DEFAULT JUDGMENT APPLICATION

1. Defendant Perez's Motion TO Set Aside

Entry of Default is DENIED.

2. Plaintiff ODK Capital's Application for Default Judgment is GRANTED.

Background

Plaintiff

ODK Capital, LLC ("Plaintiff") alleges as follows:

On

June 24, 2024, Teach Hair Inc. ("THI") entered into a Business Loan and Security Agreement and accompanying supplement ("BLSA") in favor of Celtic Bank ("Celtic"), wherein Celtic agreed to loan monies to THI in exchange for repayment. Crystal Perez ("Perez") contemporaneously executed a personal guaranty. Celtic subsequently assigned the BLSA to Plaintiff. THI has failed to make payments due.

On

October 8, 2025, Plaintiff filed a complaint, asserting causes of action against THI and Perez for: (1) Breach of Contract and (2) Breach of Guaranty.

On

December 10, 2025, THI's and Perez's defaults were entered.

1. Motion to Set Aside Entry of Default

Legal

Standard

"The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473, subd. (b).)

"When

service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered." (Code Civ. Proc. § 473.5, subd. (a).) 2

Discussion

THI and

Perez move to aside entry of default.

At the

outset, the Court construes the motion as being made by Perez only. It is well established in California that a corporation cannot represent itself in a court of record either in propria persona through an officer or agent who is not an attorney. (Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th

1094, 1101.) As such, Perez cannot represent THI.

Turning

to the merits of Perez's motion, Perez asserts that she first learned of the existence of this lawsuit on November 25, 2025" (Perez Decl., ¶ 8), "after an entry of default had already been taken" (Motion, 1:21-22). However, her default was not entered until December 10, 2025.

In any

case, where, as here, service is effectuated by a registered process server, there is a rebuttable presumption that service was proper. (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390; Evid. Code § 647 ["The return of a process server registered pursuant to Chapter 16

(commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return"].) As such, the Court must "assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption." (Evid. Code § 604.)

The

Court determines that Perez has not rebutted the presumption. While Perez asserts that she "do[es] not know any individual matching that description who was authorized to accept service on [her] behalf" (Perez Decl., ¶ 4), she does not specifically disavow knowing any individual matching "John Doe's" description set forth on the proof of service. Indeed, of the various unauthenticated documents include by Perez in connection with the motion, one document appears to be an email from Perez dated November 25, 2025, 12:15 p.m., where she appears to concede that "[p]apers were left at my home with my husband, no one confirmed identity." Perez also does not dispute that the address is her "dwelling house, usual place of abode, usual place of business, or usual mailing address."

The

motion to set aside entry of default is denied.

2. Plaintiff's Application for Default
Judgment

Plaintiff

seeks entry of default judgment. The Court has reviewed the Declaration of Bree Green, the Declaration of Emilie Johnson, the Request for Entry of Default and Court Judgment (CIV-100), as well as the proposed judgment (JUD-100), and determines that the requirements of Rule 3.1800(a) of the California Rules of Court have been met. The Court further observes that the deficiency identified in its prior order denying the application for default judgment without prejudice has now been addressed, as the assignment has been attached as Exhibit B to Bree Green's declaration. (Order dated 2/02/2026.)

The

application is granted; judgment will be entered as requested.